indirect product purchasers. The complaint alleges violations of Sections 1 and 3 of the Sherman Act, for which it seeks injunctive and equitable relief and money damages.

As of March 31, 2019, TOKIN's accrual for antitrust and civil litigation claims totaled $37.7 million which is stated in the following line items, "Account payable" ($15.0 million), "Accrued expenses" ($9.5 million) and "Other non-current obligations" ($13.2 million) on the Consolidated Balance Sheets. This amount includes the best estimate of losses which may result from the ongoing antitrust investigations, civil litigation and claims. However, the actual outcomes could differ from what has been accrued. Additionally, under the terms of the TOKIN Purchase Agreement, KEMET will be responsible for defending all suits brought against TOKIN, paying all expenses and satisfying all judgments to the extent incurred by or rendered against TOKIN arising out of or related the capacitor antitrust investigations and related litigation described above.

Note 16: Quarterly Results of Operations (Unaudited)

The following table sets forth certain quarterly information for fiscal years 2019 and 2018. This information, in the opinion of the Company's management, reflects all adjustments (consisting only of normal recurring adjustments) necessary to present fairly this information when read in conjunction with the Consolidated Financial Statements and notes thereto included elsewhere herein (amounts in thousands except per share data):

	Fiscal Year 2019 Quarters Ended			
	Jun-30	Sep-30	Dec-31	Mar-31
Net sales	$ 327,616	$ 349,233	$ 350,175	$ 355,794
Gross margin	94,821	113,565	123,750	126,406
Operating income [1]	35,176	50,000	61,616	54,057
Net income	$ 35,220	$ 37,141	$ 40,806	$ 93,420
Net income per basic share	$ 0.61	$ 0.64	$ 0.70	$ 1.60
Net income per diluted share	$ 0.60	$ 0.63	$ 0.69	$ 1.58

	Fiscal Year 2018 Quarters Ended			
	Jun-30	Sep-30	Dec-31	Mar-31
Net sales [2]	$ 273,946	$ 301,568	$ 306,576	$ 318,091
Gross margin [2]	74,117	84,904	92,288	88,128
Operating income [1] [2]	27,607	31,597	32,002	21,646
Net income [2]	$ 220,439	$ 12,819	$ 18,589	$ 2,280
Net income per basic share [2]	$ 4.65	$ 0.26	$ 0.33	$ 0.04
Net income per diluted share [2]	$ 3.82	$ 0.22	$ 0.32	$ 0.04

[1] *Operating income (loss) as a percentage of net sales fluctuates from quarter to quarter due to a number of factors, including net sales fluctuations, foreign currency exchange, restructuring charges, product mix, the timing and expense of moving product lines to lower-cost locations, the write-down of long lived assets, the net gain/loss on sales and disposals of assets and the relative mix of sales among distributors, original equipment manufacturers, and electronic manufacturing service providers.*

[2] *Fiscal year 2018 figures adjusted due to the adoption of ASC 606.*

Note 17: Subsequent Events

The Company has evaluated events from March 31, 2019 through the date the financial statements were issued and there have not been any subsequent events that require disclosure.